

Quiz — 1.5.1 Computing Related Legislation

Name: _____ Date: _ **Mark:** ____ / 25

OCR H446 · Component 01 · 1.5.1

Section A — Multiple choice (8 marks)

1. An employee logs into a colleague's account using a password they overheard, but does not change or steal anything. Which law/offence applies? A. Copyright, Designs & Patents Act 1988 B. Computer Misuse Act 1990 — Offence 1 (unauthorised access) C. Data Protection Act 2018 D. RIPA 2000 Your answer: ☐
 2. A hacker breaks into a bank's network specifically intending to transfer money to their own account. Which offence is the most serious one committed? A. Computer Misuse Act — Offence 1 B. Computer Misuse Act — Offence 2 (unauthorised access with intent to commit a further offence) C. Computer Misuse Act — Offence 3 D. Copyright, Designs & Patents Act 1988 Your answer: ☐
 3. A criminal writes and releases ransomware that encrypts victims' files. Which offence applies? A. Computer Misuse Act — Offence 1 B. Computer Misuse Act — Offence 2 C. Computer Misuse Act — Offence 3 (unauthorised modification of computer material) D. Data Protection Act 2018 Your answer: ☐
 4. A company sells its customer mailing list to a third party without any lawful basis and without informing the customers. Which law/offence applies? A. Data Protection Act 2018 / GDPR B. Computer Misuse Act 1990 C. RIPA 2000 D. Copyright, Designs & Patents Act 1988 Your answer: ☐
 5. A student downloads a cracked copy of paid video-editing software from a torrent site. Which law applies? A. Data Protection Act 2018 B. RIPA 2000 C. Copyright, Designs & Patents Act 1988 D. Computer Misuse Act — Offence 1 Your answer: ☐
 6. The police, with the correct authorisation, intercept a suspect's communications during a serious-crime investigation. Which law governs this? A. Computer Misuse Act 1990 B. Regulation of Investigatory Powers Act 2000 (RIPA) C. Copyright, Designs & Patents Act 1988 D. Data Protection Act 2018 Your answer: ☐
 7. Under the Data Protection Act 2018, what is the correct name for the person whose personal data is being processed? A. Data controller B. Data processor C. Data subject D. Data auditor Your answer: ☐
 8. Under the Copyright, Designs & Patents Act 1988, when does copyright protection begin for an original piece of software? A. Only after it is registered with the Patent Office B. Automatically, as soon as the work is created C. Only after a licence is purchased D. Only after it is published commercially Your answer: ☐
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Section B — Short answer (8 marks)

9. State the **three offences** defined by the Computer Misuse Act 1990. [3]
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10. The Data Protection Act / GDPR sets out principles for handling personal data. State **two** of these principles. **[2]**

11. Explain the difference between **copyright** and a **patent**. [2]

12. State one power granted to public authorities by RIPA 2000. [1]

Section C — Extended response (9 marks)

13. A small online retailer stores its customers' names, addresses and card details in an unencrypted database. A hacker, who has no authorisation, breaks into the system and copies all of this personal data, then offers it for sale online.

Identify the relevant law(s) and offence(s) that apply to this scenario, and justify which party is responsible under each. Explain clearly why **more than one** law is involved. [9]

Answer key

Section A (1 mark each = 8)

Section B (8)

9. **[3]** (1 each): (1) Unauthorised access to computer material; (2) Unauthorised access with intent to commit or facilitate a further offence; (3) Unauthorised modification of computer material (e.g. malware/deleting/altering data). (*Accept the additional offence of making/supplying/obtaining articles for use in offences.*)
10. **[2]** Any two, 1 each: processed lawfully, fairly and transparently; collected for a specified/limited purpose (purpose limitation); adequate/relevant/not excessive (data minimisation); accurate and up to date; kept no longer than necessary (storage limitation); kept secure (integrity & confidentiality); accountability.
11. **[2]** Copyright protects the **expression** of an original work (software code, music, text) and arises **automatically** with no registration (1). A patent protects a new **invention/idea** and must be **applied for and granted** before it takes effect (1).
12. **[1]** Any one: lawfully intercept/monitor communications; demand that ISPs/communications providers give access to data; require a person to hand over encryption keys; (it also defines *who may authorise* such activity to prevent abuse).

Section C — indicative content (9)

Award marks for correctly **naming** laws/offences and **justifying** responsibility. Expect: - **Computer Misuse Act 1990** applies to the **hacker**: Offence 1 (unauthorised access) and, because they intended to sell/profit, **Offence 2** (access with intent to commit a further offence). Releasing/selling could also engage Offence 3 if data was modified. - **Data Protection Act 2018 / GDPR** applies to the **retailer** (the data controller): they failed the **integrity & confidentiality / security** principle by storing personal data **unencrypted**, so they share legal responsibility even though they were the victim of the hack. The ICO could fine them. - **CDPA 1988** is **not** the right law here (no copying of a creative work) — credit candidates who correctly *exclude* it. - **Two laws apply** because the scenario contains two distinct wrongs: the hacker's unauthorised access (CMA) **and** the retailer's negligent handling of personal data (DPA). Naming both, with the responsible party for each, is the key discriminator.

Banded guidance (9 marks): - **1–3:** Names one law with limited/partial justification; little link to the responsible party. - **4–6:** Names both CMA and DPA, links each to a party, but justification is uneven or an offence number is missing/incorrect. - **7–9:** Accurately names CMA (with correct offence numbers) and DPA, assigns responsibility to hacker and retailer respectively, explains clearly *why* two laws apply, and correctly excludes CDPA.

Total: 8 + 8 + 9 = 25